

Sanjay Bachubhai Sharma vs Pranalinaben W/O Sanjaybhai Sharma on 5 May, 2022

Author: B.N. Karia

Bench: B.N. Karia

C/SCA/3388/2020

CAV JUDGMENT DATED: 05/05/2022

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/SPECIAL CIVIL APPLICATION NO. 3388 of 2020

FOR APPROVAL AND SIGNATURE:

HONOURABLE MR. JUSTICE B.N. KARIA

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1	Whether Reporters of Local Papers may be allowed to see the judgment ?	YES
2	To be referred to the Reporter or not ?	YES
3	Whether their Lordships wish to see the fair copy of the judgment ?	NO
4	Whether this case involves a substantial question of law as to the interpretation of the Constitution of India or any order made thereunder ?	NO

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SANJAY BACHUBHAI SHARMA
Versus
PRANALINABEN W/O SANJAYBHAI SHARMA

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Appearance:

MR JAGDHISH SATAPARA(5524) for the Petitioner(s) No. 1
NAMAN H KINKHABWALA(8831) for the Petitioner(s) No. 1
MR.HITENDRA D RAJPUT(7224) for the Respondent(s) No. 1
MR.PRADYUMAN GOHIL(7237) for the Respondent(s) No. 1
RAJPUROHIT R BHAWARLAL(9420) for the Respondent(s) No. 1

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CORAM:HONOURABLE MR. JUSTICE B.N. KARIA

Date : 05/05/2022

CAV JUDGMENT

1. By way of present petition, petitioner has prayed for following reliefs:

"[I] Your Lordships may be pleased quash and set

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aside the judgment and order passed by the learned Family Court NO.3, Ahmedabad in interim order passed under Exh.15 dated 07/12/2019 by the learned Family Court no.3, Ahmedabad in Family suit NO.894/2019.

[II] Your Lordships stay the judgment and order passed by the learned interim order passed under Exh.15 dated 07/12/2019 by the Learned Family Court no.3, Ahmedabad in Family suit NO.894/2019.

[III] Any other and/or further relief/s that this Hon'ble Court may deem fit looking to the facts and circumstances of the case may be awarded to the Applicants."

2. Brief facts of the present case may be summarized as under:

2.1 Petitioner is an advocate at the Metro Court and since 2005, he is residing in Canada and doing job. He is having Canadian citizenship since last 6 years as well as he is also OCI (overseas citizenship India) in India. Mother and father of the petitioner are the permanent resident of U.S.A. That, petitioner having some residential properties in Maninagar and Narol area. That he has obtained divorce through court from his earlier wife and as he was in need of a partner, he had given an advertisement for marriage in newspaper, along with his mobile number and after this advertisement, respondent by caste Christian, contacted him and they talked on the telephone and shared the history to each other and at that time, petitioner told her that he is divorcee, to which, respondent informed that she is aged about 45 years and spinster C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 (unmarried). She was in search of NRI bridegroom and they both decided to marry. Thereafter, the petitioner showed his desire to meet her mother, and therefore, respondent called him to 17, Sharon, Christpok Society, CTM, Ahmedabad and at that time met her mother and brother Pradeep. Petitioner asked her mother "why respondent is still unmarried" to which they told that we don't have any proper boys

in our society and we are in search of NRI bridegroom, and therefore, she is unmarried".

2.2 Thereafter, the petitioner had performed registered marriage with said respondent on 05.07.2018, and thereafter, when the petitioner was to leave to Canada on 06.08.2018, two days earlier i.e. on 02.08.2018, he received a cover through post, in which, he got a divorce deed of respondent, due to which, the petitioner got shocked, and thereafter, he went to the residence of respondent and asked about the earlier marriage and divorce but they didn't reply properly.

That ticket of the petitioner was already booked prior to this incident, and therefore, petitioner went to Canada on 06.08.2018. During this period, petitioner tried to get real truth behind the curtain but when he inquired about his matter with respondent, she told that it is false allegation and told the petitioner to trust her. As the C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 petitioner had made search and during his search, it was found that respondent has already got married with two persons and got divorce on stamp paper. It also came into knowledge of the petitioner that after the marriage, she obtained big amount on the ground of divorce, and hence, petitioner understood that he was cheated, and therefore, petitioner clearly informed to respondent that he cannot call her to Canada because she did not have valid divorce decree of court and he can not give false information to Immigration Department because Immigration Department needed compulsory court divorce decree and she did not had it.

2.3 As the petitioner got the job in Canada, he went to Canada on 06.08.2018, after handing over the possession of house to his parents Bachubhai Manilal Sharma & Kusumben, and his father was paying the maintenance, tax bill & light bill of the said residence property (105, Shalin Height-2, Flat), which is situated at Narol. That after the returning from the Canada, petitioner immediately sent a notice on 15.11.2018 through his advocate to respondent and informed her that he will take legal action against her and also warned the respondent not to use the surname & photograph of the petitioner. 2.4 That after receiving of such notice, respondent wife came in C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 action with an unknown person aged about 35 years old, break the lock of the house of the petitioner and took the possession forcefully of residence property and shop which was in same building. On the day of the incident, petitioner was at Canada and the parents of the petitioner were at the house of his relatives at Gandhinagar, and therefore, respondent wife committed criminal trespass on 12.11.2018 and went to reside in the said house and in this house. In this documents and house hold articles and golden ornaments worth Rs.4 to 5 Lakhs and cash amount of Rs. 17,000/-, share certificate and valuable articles were misappropriated by respondent. 2.5 Thereafter respondent wife immediately filed a Family Suit No.2446 of 2018 before the learned Family Court on 19.11.2018 with injunction application which was rejected on 21.02.2019 with detailed order. That in the said Family Suit No.2446 of 2018, respondent prayed not to dispossess her from similar property. On the same ground and with same contentions she also filed an application under the provisions of Domestic Violence Act as interim application in the civil suit No.894 of 2019 before Family Court. Respondent wife did not proceeded in the said civil suit after the rejection of injunction application and not produced any further C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 evidence even though the court has issued notice. That,

thereafter petitioner has filed his detailed reply and even though the respondent wife had not remained present, the said civil suit was dismissed on 07.12.2019.

2.6 Though said respondent wife does not have any right, title, interest over the shop, she has prepared a false and fraudulent rent agreement dated 24.12.2018 and has registered the same at Narol P.S. vide registration No.2607/2018, in which names of all the accused are given and she has also kept her things inside the shop and by making the forged rent agreement has get a wrongful gain of Rs. 26000/- and deposit of Rs.12,000/- per month as rent, and therefore, petitioner filed written complaint to the police. When the petitioner told that he is real owner, the tenant called the respondent. She gave filthy abuses and her accomplice threatened the petitioner to kill him if he does not go from there and also assaulted the petitioner with wooden stick on his hand. The said severe attack done by the respondent and her accomplice was recorded in mobile phone. The petitioner, therefore, gave written complaint to the police against the respondent to register offence punishable under Sections 461, 462, 467, 468, 471, 506 (2), 120 (B), 420, 447, 448, 452, 457 C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 and 380 against all these persons on 14.06.2019 2.7 That even though the police has not taken any action after the written complaint, father of the petitioner has filed complaint before the Metropolitan Magistrate Court No.19 as criminal application No.6714 of 2018 on 22.11.2018. That after Court has issued inquiry under Section 202 of Cr.P.C. and call for the report from the police, police submitted the report before the court concern, wherein it is clearly come out that to obtain the property of the petitioner she has married with the petitioner and also come out that she has filed a bogus complaint under Section 498 (A) of I.P.C. against petitioner and his family members. Even she has suppressed that she had taken divorce earlier during the time of marriage, which also came out during the investigation. Therefore, the court issued the processes against the respondent wife.

2.8 That in between the wife also filed criminal complaint on 28.11.2018 before Narol Police Station as I-C.R. No.290 of 2018 under Sections 498(A), 323, 506 (2) and 114 of the IPC. That in the said complaint, she has never stated that she is residing at the premises of Narol. That petitioner has also filed Family Suit No.894 of 2019 before the learned Family Court, Ahmedabad for C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 cancellation of marriage registration under Section 25(3) of the Special Marriage Act on 19.04.2019. That in the suit, petitioner has also filed injunction application but the court has not proceeded in such application. That on the one hand, the learned Family court has not proceeded further in the Family Suit No. 894 of 2019 and in the same Family Suit No. 894 of 2019, respondent wife filed an application under Sections 12, 19 read with 26 of the Protection of Women from Domestic Violence Act, 2005 on 22.05.2019 at Exh.15. That court proceeded the said application at Exh. 15 and passed an order on 07.12.2019. That learned Family Court has ordered not to dispossess the respondent wife from the suit property and hence petitioner has challenged the same before this court.

3. Heard learned advocate for the petitioner and learned advocate for the respondent at length.

4. It is submitted by learned advocate for the petitioner that respondent has preferred an application under Section 19 read with Section 26 of the Protection of Women from Domestic Violence Act, 2005 (hereinafter referred to as "the Act") in the suit preferred by the petitioner for annulment of

marriage i.e. Family Suit No.894 of 2019. That application preferred by the respondent under section C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 read with Section 26 of the Act is not maintainable and the same is barred by principles of res-judicata. The respondent had already preferred a suit before the learned Family Court being Family Suit No.2446 of 2018 along with Exh.5 application. The Exh.5 application of the respondent came to be rejected vide order dated 21.02.2019 and strict observations were made by the learned Family Court against the respondent.

4.1 That the respondent may be entitled to prefer an application under Section 19 read with Section 26 of the Act before the Competent Court but not at the cost of principle of res-judicata. Bear perusal of Section 26 (2) of the Act would make it clear that the relief sought under Section 26 should be in addition to the relief sought in other proceedings but it cannot be of the same nature. Had it been the case that the respondent had not preferred Family Suit No.2446 of 2018, then her application under Section 19 read with Section 26 of the Act in petitioner's Family Suit No.894 of 2019 could have been entertained, but in the present case the very same court has rejected the Exh.5 application of the respondent in Family Suit No.2446 of 2018 and the suit itself is dismissed. In spite of which the respondent has preferred application under Section 19 C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 read with Section 26 seeking same relief but under different nomenclature. That if such applications are permitted under the shadow of Section 26 of the Act, then the same will create multiplicity of proceedings in civil and criminal courts. Therefore, the same cannot be entertained and the impugned order deserves to be quashed and set aside.

4.2 It is further argued that without prejudice to the aforesaid contentions. The impugned order deserves to be quashed and set aside as the ingredients of Section 19 of the Act itself is not attracted. Two basic criteria for invoking section 19 of the Act are

(a) There should be prima facie occurrence of Domestic Violence Act and (b) The subject matter property should be shared-household. 4.3 It is submitted that so far as the Domestic Violence is concerned, nowhere in the entire Application preferred by the Respondent, the respondent has stated that domestic violence has been committed by the petitioner or his family members. That even the learned court below has failed to observe in the order that prima facie domestic violence has not taken place against the respondent by the petitioner.

b) So far as ingredient of shared-household is concerned the same is C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 not at all attracted in the facts of the present case. The definition of shared-household is provided under Section 2(s) of the Act. The interpretation of the said definition has been done by the Hon'ble Supreme Court in Para 63 of the land mark judgment in Civil Appeal No.2483 of 2020 i.e. Satish Chander Ahuja Vs. Sneha Ahuja as well as para 14, 16 and 19 passed by Hon'ble Delhi High Court in Cri.MC1327/2021 and Cri.MA 7314/ 2021 i.e. Vibhuti Wadhwa Sharma Vs. Krishna Sharma and Anr. In the aforesaid judgments Hon'ble Courts have observed that living of women in household has to refer to living which has some 'permanency'. 'Mere fleeting or casual living' would not amount to shared-household. 4.4 Thus, it is crystal clear that the respondent has not resided in the subject matter property from 05.07.2018 to 12.11.2018 and on 12.11.2018 the respondent has tried to take illegal possession of the subject matter property. That even considering

the reply filed by the respondent, the respondent herself has accepted that she had gone at her parental home in the month of October-2018. Thus there is no permanency in the residence of the respondent. Therefore, the subject matter property would not fall under the purview of shared-household, and therefore, Section 19 could not have been invoked by C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 the respondent.

4.5 That prima facie respondent is not entitled for relief under the Act as the very relation of the petitioner and respondent is under challenge before the learned Family Court in Family Suit No.894 of 2019. The marriage between petitioner and respondent is null and void as the respondent has committed fraud in marrying the petitioner. The respondent has not disclosed material fact that the respondent herself was married with two other persons before marrying the petitioner. That even the respondent has stated that she is unmarried in the affidavit of marriage as well as notice of marriage. That even considering principle of law as laid down by the Hon'ble Supreme Court in exactly similar case precisely in Para 13.1 and 13.2 of judgment reported in AIR 2019 SC 1500 in Swapnanjali Sandeep Patil Vs. Sandeep Ananda Patil, the marriage itself between the petitioner and respondent is null and void and in such circumstances prima facie no orders could have been passed by the learned Family Court under the Act when the alleged domestic relationship itself is under challenge.

4.6 That even otherwise the order passed by the learned Family Court is an unseasoned order. That no reasoning for prima facie case C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 of the respondent has been observed by the learned Family Court. That the observations made by the learned Family Court in consonance with Section 19 of the Act. Further observation has been by learned Family court in consonance with the definition of 'shared-household'. Thus the impugned order is an unseasoned order and the same deserves to be quashed and set aside.

5. Per contra, learned advocate appearing for the respondent has vehemently submitted that the petition filed by the present petitioner for declaring the marriage as null and void before learned Family Court vide Family Suit No. 894 of 2019 is pending and meanwhile, Exh. 15 came to be allowed as interim application, whereby the petitioner is restrained to dispose of the respondent from said property.

5.1 That till the time Family Suit No.894 of 2019 filed by the petitioner for null and void of her marriage before learned Family Court is not concluded and respondent herein is in status of wife, the question of null and void of marriage only can be decided after appreciating the evidence by learned Family Court, Ahmedabad, hence at this junction the respondent has only shelter i.e. shared household.

C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 5.2 That the petitioner has been trying to throw the respondent out of the home since beginning. That he had filed the proceeding for null and void Family Suit No.894 of 2019 in April, 2019. That she is residing permanently after her marriage there at the shared house till date, except she had gone temporally to her parents' home in between. That petitioner herein failed to establish prima facie that the respondent had not stayed in said shredded house. That there are averments and documents filed by the petitioner itself are

sufficient to prove at this juncture that the present respondent was staying in the said home as well as there are certain other document filed by the respondent supports her contention and case that the said house is shared house hold as per the provisions of 2(s) of the Domestic Violence Act, 2005.

5.3 That the suit notice of said family suit was served upon the respondent at the shared house hold which clearly proves that at time of filing of the application under Section 19 of the Domestic Violence Act as well as right from beginning the respondent was residing in said property, which the learned Family Court had observed about service of summons at the suit property in its order at C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 Exh. 15. Therefore, it is crystal clear that at time of filing of the application the respondent here was in shared house hold. 5.4 That so far as the contention of staying prior and immediate after marriage staying at said shared house hold is concerned, same is also very clear from the averment and the documents filed by the present petitioner, which is at Page No.114 of the proceeding. That the father of the present petitioner had given the statement/complaint before the police, wherein he said that when some inquiry was made, and thereafter, she has left the home, it means prima facie prior to that also she was staying in the said property. As far two averments are concerned very crystal clear that at the time filing of the application, and prior, as well as after that also, she was staying in the said property.

5.5 It is further submitted that petitioner's every averments are contradictory at different stages before Family Court as well as before this Court. That the story has been cooked up that she had broken the lock, which is just built for the purpose of depriving from right to have shelter in shared house hold. That interestingly the parents of the petitioner was not living in said shared hold but when it came to be litigation to deprive the respondent from shelter they C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 have said that they were staying in shared house, where it is nothing but false statement.

5.6 That at Page 205 of the present proceedings, there is report of the records wherein the attempt was made to serve the summons on the petitioner at his other resident at Maninagar, wherein his father had clearly said that they are nothing to do with their son as well as further also it is crystal clear that they were not residing at the shared house hold and question does not arise that they have gone to the Gandhinagar and the respondent had broken the lock. That prima facie looking to the documents and said property and averments all are contradictory. The intention of the parents also very clear that they have just joined hands to support their son and defeat the right to reside in shared house of the respondent.

5.7 It is further submitted that respondent had paid the society charges from her account which is attached at the Page No.200. That as far as the provisions of 2(s) is concerned, it is very crystal clear that even if stayed in shared house hold in past at any point of time with husband then in that case also same is considered as shared house hold, where as in present case the petitioner had taken the respondent to the said home after marriage and then he had left for C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 U.S.A. 5.8 It is further submitted that Delhi High Court in CRI. M.C. 1327 of 2021 and SRI MA 7314/2021 i.e. Vibhuti Wadhwa Sharma Vs. Krishna Sharma and Anr. judgment is not applicable in the present case as the litigation was between in-law and daughter-in- law as well as there was other shared house, hence it is very different to the facts of

present case on hand. Here this is only shared house as well as property is owned by the husband not the in-laws. 5.9 It is further submitted that in the Civil Appeal No. 2483 of 2020 i.e. Satish Chandra Ahuja Versus Sneha Ahuja , the entire judgment it is very clearly discussed about shared house hold and Section 19 of the Domestic Violence Act, wherein Para 63 favours the respondent, since she has been till date staying in the said property which is her only shared house. That she is pite that Hon'ble Supreme Court had remanded matter back without disturbing the order under Section 19 of the Domestic Violence Act, 2005, that to be decided by civil proceeding not in Domestic Violence proceeding.

5.10 It is further submitted that attempt was made to the extent that application was made to disconnect the electricity and finally the C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 respondent had replied to the torrent power once after the said attempt was made and hence she has got the electricity. That in civil suit, interim application for was not granted on certain technical points as well as the Domestic Violence Act protects the woman from wider scope, without having right, title and interest in the said property. Moreover the same learned Family Court has protected the respondent by way of order below Exh.5, since test of the remedy is different in civil as well as Domestic Violence Act. The right to shelter is basic intention behind the litigation and Section 19 of the Domestic Violence Act, if she may not be protected her life may be ruined and she may shelter less. Therefore at this stage the order below Exh.15 is proper, valid and as per the provision of law, which should be upheld in the great interest of justice. Ultimately it was requested by learned advocate appearing for the respondent-wife to dismiss this petition and confirm the order passed below Exh.15 in the interest of justice.

6. Having heard learned advocates appearing for the respective parties and perused the material placed on record by the either side, it appears that before marrying the respondent with the present petitioner, she was married with one Amitbhai Johnbhai Makwan on C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 03.03.2020, and thereafter, divorce deed was executed by the respondent and said Amitbhai Johnbhai Makwan on 09.10.2000. Copy of the divorce deed is produced on record. There is nothing on record that divorce decree was obtained by the respondent and said Amitbhai Johnbhai Makwan from the competent court of law. It further appears from the record that the said Amitbhai Johnbhai Makwan executed an affidavit on 04.11.2000 declaring that divorce deed preferred on 09.10.2000 stands cancelled. Again on 31.07.2002, respondent and said Amitbhai Johnbhai Makwan preferred another divorce deed but even then no divorce decree was obtained by them from the Civil Court. Thereafter, it appears from the record that respondent again got married to one Keshwala Hardas Viram on 05.02.2007. However, she had not obtained legal divorce from her former husband i.e. Amitbhai Johnbhai Makwan.

7. It appears from the memorandum of marriage, the respondent herein portrayed herself to be unmarried. Copy of the memorandum of marriage dated 05.02.2007 between Keshwala Hardas Viram and respondent is produced on record. Again on 18.09.2009, divorce deed was executed with Keshwala Hardas Viram and the present respondent but no divorce decree was obtained from the competent C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 court of law. The said divorce deed dated 18.09.2009 is produced on record by the petitioner. However, respondent was already married twice and had not taken divorce from the aforesaid two persons in spite of the said

facts, with an intent to cheat the petitioner, she conveyed that she was unmarried and had taken the petitioner under confidence and induced him to marry with her. It appears that petitioner was kept under dark, and therefore, he agreed to marry with the respondent. As respondent belongs to Christian community and petitioner belongs to Hinduism, both had agreed to marry in accordance with Special Marriage Act, 1954.

8. From the affidavit dated 28.05.2018 executed by the petitioner and respondent, she has depicted herself as "unmarried" whereas she was already married to two other persons. Affidavit dated 28.05.2018 is produced on record. It further appears that, notice of intended marriage between the petitioner and respondent dated 30.05.2018 was issued wherein also, respondent has shown herself as unmarried in spite of the fact that an option of divorce was available, she opted for unmarried column. From this notice and affidavit, intention of the respondent from the beginning appears to be clear to cheat the present petitioner and take away the possession of the sub-

C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 subject matter of the property. Copy of the notice intended marriage dated 30.05.2018 is produced on record. As per the submission of the petitioner, aforesaid facts were never disclosed by the respondent to the petitioner. It appears that an application was preferred by the respondent under the protection of women from Domestic Violence Act, 2005 under Section 26 of the Act and sought protection under Sections 12 and 19 of the Act. For the perusal of this Court, Section 26 of the said Act provides as under:

"(1) Any relief available under sections 18, 19, 20, 21 and 22 may also be sought in any legal proceeding, before a civil court, family court or a criminal court, affecting the aggrieved person and the respondent whether such pro-

ceeding was initiated before or after the commencement of this Act.

(2) Any relief referred to in sub-section (1) may be sought for in addition to and along with any other relief that the aggrieved person may seek in such suit or legal proceeding before a civil or criminal court.

(3) In case any relief has been obtained by the aggrieved person in any proceedings other than a proceeding under this Act, she shall be bound to inform the Magistrate of the grant of such relief."

9. Bare perusing Section 26 of the said Act, it appears that however remedy was available with the respondent to prefer an application under Section 26 of the Act for remedies available under Sections 18, 19, 20, 21 and 22 of the Act as Section 26 is in a nature of C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 giving final relief and not interim protection. It further appears that intention of the legislation is to grant final relief to the respondent and not interim protection in pending suits. It is not in dispute that Family Suit No.894 of 2019 was preferred by the present petitioner for annulment of marriage wherein respondent has preferred an application Exh.15 under Section 26 of the Act for protection available under Sections 12 and 19 of the Act. If we refer the application Exh.15 dated 22.05.2019 preferred by the respondent under Section 26 read with Sections 12 and 19 of the Act, it transpires that no allegations of domestic violence were charged

against the petitioner or his family members. In absence of any specific allegations of domestic violence by the petitioner or his family members remedies available under the Domestic Violence Act would be doubtful.

10. It further appears that marriage of the petitioner with the respondent was registered on 05.07.2018, thereafter, respondent was residing at her parental home and was not residing with the petitioner as he was intended to bring the respondent after ceremony was organized and he had left for Canada on 06.08.2018. It further appears that after leaving for Canada by the petitioner, subject matter property was vacant and respondent was not residing in the said C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 property. Electricity bill for the month of October-2018 is produced on record by the petitioner, which shows that the units consumed for the months of August and September is 0 (Nil) and therefore, from the aforesaid facts, it can be said that no one was residing in the subject matter property i.e. 105/F Shalin Heights, Narol, Ahmedabad and subject matter property cannot be treated as shared household.

11. Prima facie there is reason to believe that petitioner and respondent were never residing permanently with each other in the said house and therefore, she cannot claim her right under Section 19 of the Act in the aforesaid property. Copy of the electricity bill is produced at Page No.37 of the main petition. Further, it also appears that respondent has not resided with the parents of the petitioner in the subject matter property. Further, it appears that father of the petitioner had preferred Criminal Misc. Application No.6714 of 2018 (Criminal Case No.85303 of 2019) and prayed for registering the offence under Sections 406, 452, 323, 506(2) and 114 of the I.P.C. against the respondent. If we peruse the police report prepared by the police authorities, it is clearly stated in respect of the subject matter property that respondent has illegally broken up the door of the subject matter property on 12.11.2018 and also illegally entered in the C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 subject matter property. Copy of the complaint lodged by the father of the petitioner is also produced on record as well as police report at page No.114 of the main petition. Further, it appears that respondent has abused the process of law by executing a rent agreement with the third party for the subject matter property knowing that she is not the owner of the subject matter property. Further, it appears that learned Chief Metropolitan Magistrate, Ahmedabad on 21.09.2019 in Criminal Misc. Application No. 6714 of 2018 was pleased to issue summons to the respondent under Sections 452, 406, 420 and 114 of the I.P.C and the said complaint was converted into Criminal Case No.85303 of 2019. Copy of the criminal case is produced by the present petitioner at page No.116 of the main petition.

12. Further, it appears from the record that members of the Uma Co-operative Housing Society situated nearby to the subject matter property i.e. Shalin Heights, Narol, Ahmedabad have made a complaint about nuisance created by the respondent by notice dated 15.09.2020. Petitioner had also preferred complaint against the respondent as she had preferred a forged rent agreement of the shop, which is in the same flat of subject matter property in favour of the third party, and therefore, petitioner had preferred Criminal Misc. C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 Application No.3052 of 2020 against the respondent wherein, learned Additional Chief Metropolitan Magistrate was pleased to pass an order below Exh.1 on 01.02.2021 to issue process to the respondent for the offence punishable under Sections 465, 467 and 468 of the I.P.C., 1860, and

thereafter, it was directed to convert into criminal case. Further, it appears that respondent had preferred a frivolous complaint against the present petitioner under Sections 500 and 114 of the I.P.C., 1860 before the learned Chief Metropolitan Magistrate, Ahmedabad being Criminal Misc. Application No.3188 of 2020 wherein learned Chief Metropolitan Magistrate, Ahmedabad was pleased to reject the prayer made by the respondent vide order dated 11.02.2021.

13. Respondent has filed Family Suit No.2446 of 2018 before the Family Court, Ahmedabad with a prayer to restrain the defendant and his parents or their agents, transferee or power of attorney not to take possession of the subject matter property i.e. 105/F Shalin House behind Aakruti Township opposite Srinath Residency, Narol, Ahmedabad or to take the forceful possession by granting permanent injunction. She also preferred one application along with the suit under Order 39 Rule 1 and 2 read with Section 151 of Civil Procedure C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 Code restraining the defendants and their servants, agent, assignee, power of attorney to dispossess her and also to enjoy the disputed property.

14. Learned Family Court after hearing the parties, was pleased to reject the application Exh.5 preferred by the respondent for ad -in- terim relief by his order dated 21.02.2019. Learned Family Court has observed in the order "as per the contention of the wife she was living in a disputed property but in her whole plaint she has not stated description to the disputed property. Under the provisions of Order VII of C.P.C. as she was specifically stated in the petition about the description of the immovable property so that sufficiently it can be identified by boundaries or survey number of the disputed property. Merely on title page, she has stated her address but in support of the said address, he has not produced any documentary evidence to show that said property was running on the name of the respondent No.1. Merely she has produced the electricity bill vide Mark 4/6, but from that bill no one can say that electricity connection is of the said property is running in the name of respondent No.1. Also from the said bill, it was observed that consumption of electricity bill during C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 the month of October-2018 is 0 unit." Ultimately, the application Exh.5 for interim relief was rejected vide order dated 21.02.2019.

15. Suppressing the material facts in a Family Suit No. 894 of 2019 preferred by the present petitioner for annulment of his marriage, she preferred an application Exh.15 under Sections 12 and 19 read with Section 26 of the Protection of Woman from Domestic Violence Act, 2005 in respect of the similar property i.e. shop particularly F-18, Shalin Heights Srv No.581/1, T.P. No.58, Plot No.35/2, M.T. No.0320-26-22-19-0001. She further prayed in Paragraph No.16 (B) that she may not be dispossessed or disturbed her possession during the pendency of the present suit as contemplated under Section 19 of the Protection of Women from Domestic Violence Act on 22.05.2019.

16. Application of the respondent-wife was allowed under Section 19 read with Section Section 56 of the Protection of Women from Domestic Violence Act restraining the petitioner from dispossessing the respondent from suit house i.e. F-105, Shalin Heights, Narol, Ahmedabad bearing Muni. Tenement No.0320-26-2301-0001- GJ till the final decision of the suit vide order dated 07.12.2019. As the same prayer was rejected by the learned Family court while passing C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 the order below Exh.5 on 21.02.2019, knowingly the respondent

pre-ferred an application Exh.15 in Family Suit No.894 of 2019 on 22.05.2019 and the learned Judge of Family Court allowed the ap- plication erroneously. Once the prayer was rejected by the learned Family Court in respect of the same subject matter of the property, again the same Family Court can not and may not grant the same prayer in an application preferred under Sections 12 and 19 read with Section 26 of the Protection of Women from Domestic Vio- lence Act, 2005 during the pendency of the Family Suit No.894 of 2019 preferred by the petitioner.

17. If we peruse Section 26(2) of the Act it provides that relief sought under Section 26 should be in addition to the relief sought in other proceedings but it can not be of the same nature. Very same Court has rejected the application Exh.5 of the respondent in Family Suit No.2446 of 2018, and thereafter, in an application under Section 19 read with Section 26 seeking same relief by the respondent under different nomenclature was wrongly allowed by the learned Family Court . This would create multiplicity of proceedings in civil and criminal courts. Further to attract Section 19 of the Act, there should be prima facie occurrence of domestic violence and subject matter C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 property should be shared household. If we refer the application Exh.15 preferred by the respondent before the Family Court in Fam- ily Suit No.894 of 2019, it is nowhere alleged by her that domestic violence was committed by the petitioner or his family members with the respondent. Even learned Judge, Family Court also not ob- served in the entire order that prima facie domestic violence was taken place against the respondent by the petitioner. In absence of such observation made by learned Family Court while passing the order below Exh.15, impugned order deserves to be interfered by this Court.

18. This Court would like to refer the definition of shared house- hold as provided under Section2(S) of the Act in the case of Vibhuti Wadhwa Sharma Vs. Krishna Sharma and Anr. delivered in Cri.MC1327/2021 and Cri.MA 7314/ 2021, which is as observed as under:

"14. While relying upon the principles annunci- ated by the Hon'ble Supreme Court in the afore- said decision, the learned Appellate Court in the impugned judgment observed that the daughter- in-law (petitioner herein) was not residing at the house in question on the day of presentation of the complaint nor any time soon before. Further ob- served that she was occupying a staff quarter al- lotted to her husband and lived in the house in question only for short duration and occasionally C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 visited parents-in-law, to say only thrice. The Ap- pellate Court accordingly held that these short durational visits or stay of daughter-in-law at the house of the parents-in-law would not get the house a colour of being a shared house hold and having hold so, the restraint order of the learned Metropolitan Magistrate was set aside, it being without any finding as regards the nature of premises being a shared house hold. Further held that the paents-in-law shall be well within their rights to sell off the house in question.

16. This Court is in agreement with the ratio of law laid down by the Hon'ble Supreme Court in Satish Chandra Ahuja (Supra), however, the facts of the present case are distinguishable on facts of the said case. In Satish Chandra Ahuja (Supra) the daughter-in-law was residing on the first floor of the subject property and had

therefore claimed her right as shared household but in the present case, the petitioner has actually never resided with the parents-in-laws.

19. The provisions of Section 17 of the DV Act stipulates that every woman in a domestic rela-

tionship shall have a right to reside in the shared household whether or not she has any right, title or beneficial interest in the same. However, in the present case admittedly petitioner has in fact neither permanently nor for a longer period resided in the house of parents-in-laws and so, it cannot be termed as 'shared household'. Thus, there is no question of evicting or dispossessing her from there. However, to safeguard the interest of petitioner the trial court, while deciding petitioner's petition under the DV Act, may pass an order to provide with an alternative accommodation to petitioner under Section 19 (1) (f) of the DV Act."

Living of woman in a household must be a nature of permanency not a nature of mere fleeting or casual living. C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022

19. It is undisputed fact that marriage between the petitioner and respondent was taken place on 05.07.2018 and petitioner left for Canada on 06.08.2018. Electricity bill of the subject matter property for the months of August and September-2018 shows consumption of 0 (Nil) units. On 12.11.2018, respondent tried to take forcefully possession of the subject matter property and complaint was filed by the father i.e. Criminal Misc. Application No.6714 of 2018. Police report was also submitted. Certain photographs are produced on record by the petitioner showing that respondent was trying to take illegal possession of the subject matter property. Respondent also preferred Family Suit No.2446 of 2018 on 19.11.2018 with a prayer of not dispossessing her from the subject matter property. Application Exh.5 was preferred by the respondent under Order 39 Rule 1 and 2 of the C.P.C., which was rejected by learned Family court on 21.02.2019.

20. Further it appears that, suit was filed by the respondent i.e. Family Suit No.2446 of 2018 came to be rejected on the ground of non prosecution on 07.12.2019. From the record, prima facie, it appears that respondent was not residing in the subject matter property from 05.07.2018 to 12.11.2018 and on 12.11.2018, she tried to take C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 illegal possession of the subject matter property. If we consider the reply filed by the respondent, she has accepted that she had gone at her parental home in the month of October-2018, and therefore, there was no permanency in the residence of the petitioner. Subject matter property may not fall under the purview of shared household, and therefore, Section 19 of the Act could not have been invoked by the respondent in the facts of the present case. Further, relation of the petitioner and respondent is under challenge before the learned Family Court in Family Suit No.894 of 2019. As per the prayer made by the petitioner in the suit, the said marriage is null and void as the respondent has committed fraud in marrying to the petitioner as she did not disclose the material fact that respondent herself was married with two other persons before marrying the petitioner. She declared that she was unmarried in her affidavit of marriage as well as notice of marriage produced at page No.29 and 31 of the petition.

21. Judgment relied upon by the petitioner in case of Swapnanjali Sandeep Patil versus Sandeep Ananda Patil reported in AIR 2019 SC 1500 holding that marriage itself between the petitioner and respondent is null and void and in such circumstances, no order could C/SCA/3388/2020 CAV JUDGMENT DATED: 05/05/2022 have been passed by learned Family Court under the Act when the alleged domestic relationship itself is under challenge.

22. These facts were available with the learned Family Court while deciding the application Exh.15 preferred by the respondent and facts of the previous order passed below Exh.5 in Family Suit No.2446 of 2018. Contention of the respondent that she has paid maintenance of the subject matter property cannot be given any weightage as the receipt endorsed the date as 10.04.2019 i.e. after filing of the Family Suit No.2446 of 2018.

23. Even if any maintenance are paid by the respondent from the rent received by her she would not be entitled to get any relief as prayed in her application Exh.15. Motive behind filing the application Exh.15 under the Act by the respondent appears to take possession of the subject matter property.

24. From the record it appears that respondent has not come up with clean hands and she was not entitled for any relief under the Act. Purpose of the Act is to protect women from domestic violence and to bring women at par with men in the society but she can not take undue advantage of law.

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25. From the facts of the present case, this Court is of the opinion that the respondent has misused the liberty granted to her by filing such a wrong and frivolous application Exh.15 before the learned Family Court in Family Suit No.894 of 2019 preferred by the present petitioner. Learned Family Court has erroneously and wrongly passed the impugned order granting relief to the respondent as prayed by her in her application as she is not entitled to get the same relief.

26. Under the circumstances, this Court is of the view to interfere in the interim order dated 07.12.2019 passed below Exh.15 in Family Suit No.894 of 2019 by learned Family Court No.3, Ahmedabad.

27. Hence, this petition is hereby allowed. The impugned judgment and interim order dated 07.12.2019 passed below Exh.15 in Family Suit No.894 of 2019 by learned Family Court No.3, Ahmedabad is hereby quashed and set aside. Notice stands discharged.

(B.N. KARIA, J) SUYASH